

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT STATUS REPORT OF COMPLAINANT AND RESPONDENTS

Pursuant to 46 C.F.R. §502.141(h), and the June 25, 2025 Order Following Status Conference, Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (collectively, “Respondents” or “OOCL”), (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

Initial Disclosures. Parties SEA and OOCL exchanged Initial Disclosures on December 19, 2024, in accordance with 46 C.F.R. § 502.141(b).

CADRS. Pursuant to 46 C.F.R. § 502.64, SEA confirms that its preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) occurred on April 10, 2025.

The Parties had previously engaged in preliminary settlement overtures and both Parties are open to a negotiated resolution to this matter and will discuss potential mediation.

Discovery Schedule.

On June 11, 2025, Judge Ambrow issued an Order requiring a Joint Status Report between SEA and OOCL to be filed no later than June 26, 2025 (Doc 49). The Parties have discussed a timeline for the completion of discovery in this matter and coordinated on dates as outlined below. The Parties recognize that the below-proposed schedule exceeds the Commission's general standard of 150 days for discovery, but respectfully note that the below dates reflect a realistic timeline in light of recent similar demurrage and detention cases and the complex nature of the present matter. The recent Initial Decisions concerning similar demurrage and detention reparation claims have suggested that Presiding Officers expect the parties to address demurrage and detention charges on a charge-by-charge basis to identify the responsibility for each charge at issue. This case includes a claim for reparations of \$12.5 million for more than 4,400 demurrage and detention charges, plus related damages. OOCL's database alone is estimated to include approximately 1 terabyte of data. Additionally, SEA contemplates the possibility of deposing as many as 19 witnesses and OOCL expects to depose 5 witnesses. Accordingly, the Parties expect that the discovery process will take a significant amount of time, even in the most rushed of circumstances. The Parties suggest that it would be better to provide a realistic schedule up front and hopefully avoid the need for potentially multiple requests for extensions later on.

With those considerations in mind, the Parties have discussed a proposed Discovery Schedule, with response deadlines and supplemental discovery requests governed by the Commission's rules including 46 C.F.R. §502.145 and §502.147. The Parties agree on the proposed discovery deadlines with one exception that they were unable to resolve.

Respondent OOCL insists that the proposed schedule include dates for the identification of expert witnesses prior to the production of expert reports, based on its counsels' experience with prior scheduling orders. OOCL asserts as follows: "Under the schedule proposed by Complainant, the Respondent will only learn the identity of Complainant's experts thirty days before its report(s) are due. SEA presumably knows who its experts are at this time so its proposed schedule would keep OOCL guessing as to the nature of their expertise until SEA's reports are issued. Requiring Complainant to identify its experts prior to the issuance of reports provides Respondent with the time it may need to retain additional expertise to address that of SEA's experts. This procedure is routinely incorporated into scheduling orders entered in other FMC proceedings and in discovery proceedings before U.S. District Courts. OOCL maintains that Complainant's position is based upon a narrow reading of the FMC and Federal Rules and is not followed in actual practice."

Complainant SEA does not agree to the scheduling of a requirement to disclose its experts prior to the close of fact discovery and prior to the date for the production of expert reports, *contra* to Commission Rule § 502.141(d), which provides for production of expert reports concurrently with the disclosure of expert witnesses. 46 C.F.R. § 502.141(d) ("if the witness is one retained ... to provide expert testimony in the proceeding ... the disclosure must be accompanied by a written report, prepared and signed by the witness"); *Accord*, Fed.R.Civ.P. 26(a)(2)(B) ("Unless otherwise stipulated or ordered by the court, this disclosure must be accompanied by a written report—prepared and signed by the witness—if the witness is one retained or specially employed to provide

expert testimony ...”). SEA states that “SEA has not identified its experts at this time, and seeks to complete fact discovery before confirming what expert opinions are necessary and who will testify to those opinions.”

The proposed schedule, annotated in accordance with the comments above, is attached.

Expert Testimony. The Parties anticipate using expert witnesses.

Confidential Information. The Parties anticipate that some materials will contain sensitive commercial information that is likely to require confidential treatment. They have agreed to use the confidentiality designation sparingly and to work cooperatively with respect to confidentiality stipulations and/or motions for confidential treatment.

(Execution Page Below)

Dated: June 26, 2025

Respectfully Submitted,

MILLS BLACK LLP

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PROPOSED DISCOVERY SCHEDULE

Event	Deadline
Begin exchange of Requests for Production of Documents, Requests for Admissions, and Interrogatories	July 18, 2025
Joint Status Report	Sept. 30, 2025
Complete Document Productions	Oct. 31, 2025
Complete Fact Depositions	Jan. 30, 2026
<i>[Complainant to Identify Expert Witnesses]</i>	<i>Jan. 30, 2026</i> *
Close of Fact Discovery	Feb. 13, 2026
<i>[Respondent to Identify Expert Witnesses]</i>	<i>Feb. 16, 2026</i> *
Service of Expert Report by Complainant	Mar. 6, 2026
Service of Rebuttal Expert Report by Respondent	Apr. 10, 2026
Close of Expert Discovery	May 8, 2026

* Complainant SEA does not agree with these proposed interim dates for disclosure of expert witnesses in advance of the date of production of the expert reports *contra* to Rule 502.141(d). OOCL maintains they should be identified for the reasons stated in the body of this report.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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Dated: June 26, 2025

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